

		Counsel for Plaintiff to give notice.
10	Back Bay Westminster, LLC v. Professional Real Estate Center, Inc. et al	Before the Court at present is the Demurrer filed by defendants Kevin Conklin and Back Bay Development LLC (collectively here, as moving parties, "MPs"), as to the Third and Fourth Causes of Action (each a "COA") asserted in the FAC filed by Plaintiff Back Bay Westminster, LLC ("Plaintiff") on 4/18/23. The Demurrer is SUSTAINED with 15 days leave to amend on COAs 3 and 4, as both COAs lack the requisite specificity for such claims. On a fraud claim, every element must be alleged in full, factually and specifically, including facts that show how, when, where, to whom, and by what means the representations were tendered, and when alleged against an entity, the names of the persons who made the misrepresentations, their authority to speak for the corporation, to whom they spoke, what they said or wrote, and when it was said or written. (<i>Lazar v. Sup. Court</i> (1996) 12 Cal.4th 631, 638, 645; <i>Philipson & Simon v. Gulsvig</i> (2007) 154 Cal.App.4th 347, 363; <i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Here, COA 3 again just vaguely asserts at ¶ 38 that multiple defendants represented that "there was no written Residential After Sale Agreement with the seller and there were no encumbrances and/or issues pertaining or relating to the real property." That plainly fails to adequately specify who said what, how, when, where, to whom, and by what means the alleged misrepresentations were tendered. Which of them said what, to who, when? Orally, or in a writing? And in what context – responding to a specific question, or something else? This COA also seems to be attempting to assert some amalgam of a concealment claim and an affirmative misrepresentation claim, without identifying the specifics as to which is asserted against each particular defendant and why. The circumstances which allegedly warranted justifiable reliance also lack adequate specificity. The Demurrer as to COA 3 is therefore SUSTAINED, with 15 days leave to amend. COA 4 similarly lacks adequate specificity. A plaintiff alleging unfair business practices must state with reasonable particularity the facts supporting the statutory elements of the violation. (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 619.) Here, COA 4 just vaguely asserts at ¶ 52 that the prior allegations are the basis for the claim. The Demurrer as to COA 4 is therefore also SUSTAINED, with 15 days leave to amend. Counsel for MPs is to give notice of this ruling.
11	Lopez v. Bock	O/C
12	Nijst v. Anaheim Global Medical	The Motion for Summary Adjudication filed by Plaintiff Christopher Nijst by and through his guardian ad litem, Susan Russell ("Plaintiff") is DENIED.

	Center Inc., et al.	A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. . .” (Civ. Proc. Code § 437c(f).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at 851.) “(a)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Civ. Proc. Code § 437c(f).) Civ. Proc. Code § 437c(t) allows for a party to move for summary adjudication on some other issue only if prior to filing that motion, the parties file a joint stipulation stating the issue to be adjudicated. Here, Plaintiff requests summary adjudication as to Defendant Anaheim Global Medical Center, Inc.(“AGMC”)’s vicarious liability for the negligence of Dr. Paulo Reyes (“Dr. Reyes”), as Defendant’s ostensible agent. However, the issue of agency does not dispose of any cause of action, affirmative defense, claim for damages, or issue of duty. Plaintiff asserts that it is directly related to an issue of duty but provides no authority that supports the position that this is enough to seek summary adjudication. As the parties have not filed a joint stipulation to seek summary adjudication on this issue, nor has the court granted leave to file such a motion, the motion is DENIED. Defendant Anaheim Global Medical Center, Inc. to give notice.
13	PNC Equipment Finance, LLC v. Urban Stucco, Inc. et al	The Applications for Writ of Possession filed by Plaintiff PNC Equipment Finance, LLC dba JCB Finance (“Plaintiff”) are GRANTED as to the 2020 JCB 3TS-8T Compact Track Loader, Serial Number 2958265. Plaintiff’s applications comply with Code of Civil Procedure section 512.010. The declaration demonstrates the probable validity of Plaintiff’s claim to possession of the equipment under Code of Civil Procedure section 512.010. Per Code of Civil Procedure section 515.010(a), Plaintiff is required to file an undertaking with the court in the amount of \$25,376.20, representing twice the amount of Defendants’ interest in the property, calculated as the market value minus the amount due and